

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

=====X
SAYSHA SEGUNDO,

Plaintiff,

-against-

Index No.:

Venue is based upon
Location of Occurrence.

CITY OF NEW YORK, POLICE OFFICER
TRISTIAN LATIMORE and POLICE OFFICER
"JOHN DOE"

Defendants.

=====X
SUMMONS

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York), and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 22, 2015

Defendant(s):

**CITY OF NEW YORK
100 Church Street
New York, NY 10007**

**POLICE OFFICER TRISTIAN LATIMORE
23rd Pct.
162 E. 102nd Street
New York, NY 10029**



ANTHONY IADEVAIA

The Law Offices of
ANTHONY IADEVAIA
Attorneys for Plaintiff
1932 Second Avenue
New York, New York 10029
(212) 996-8700

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

=====X Index No.:
SAYSHA SEGUNDO,

Plaintiff,

VERIFIED COMPLAINT

- against -

CITY OF NEW YORK, POLICE OFFICER
TRISTIAN LATIMORE and POLICE OFFICER
"JOHN DOE"

Defendant(s).

=====X

Plaintiff, SAYSHA SEGUNDO, by her attorneys, THE LAW OFFICES OF ANTHONY
IADEVAIA, complaining of the Defendants, respectfully alleges the following upon information
and belief:

FIRST: That at all times hereinafter mentioned, Plaintiff was a resident of the County of
State of New York.

SECOND: That at all times hereinafter mentioned, Defendant, THE CITY OF NEW
YORK, was and still is a municipal corporation created pursuant to the laws of the State of New
York.

THIRD: That at all times hereinafter mentioned, the New York City Police Department
was and still is an agency within the control of the City of New York.

FOURTH: That on May 20, 2015, Plaintiff served a Notice of Claim upon Defendants
within ninety (90) days after the causes of action herein accrued.

FIFTH: That this action is commenced within one (1) year and ninety (90) days
after the causes of action herein accrued.

SIXTH: That a hearing was held by the in accordance with the General Municipal Law,

on July 27, 2015.

SEVENTH: That at least thirty (30) days have elapsed since the aforesaid Notice of Claim was served upon the Defendants and that the Defendants have neglected and/or refused to make adjustments or payment in response thereto.

EIGHTH: That at all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK employed P.O. TRISTIAN LATIMORE and P.O. "JOHN DOE" as police officers.

NINTH: That at all times hereinafter mentioned, Defendants, THE CITY OF NEW YORK trained, managed and supervised Defendants, P.O. TRISTIAN LATIMORE and P.O. "JOHN DOE" in their capacity as police officers.

TENTH: That at all times hereinafter mentioned, Defendants, THE CITY OF NEW YORK, instituted protocol and procedures for criminal investigation, arrests and medical treatment for those under the control and custody of the New York City Police Department.

ELEVENTH: That at all times hereinafter mentioned, Defendant, Police Officers, TRISTIAN LATIMORE and "JOHN DOE", while acting in their official capacity as a police officers, wrongly and improperly detained and arrested Plaintiff

TWELFTH: That at all times hereinafter mentioned, Defendant, Police Officers, TRISTIAN LATIMORE "JOHN DOE", while acting in their official capacity as police officers, wrongly and improperly denied Plaintiff medical treatment when it was clear and obvious that she was severely injured.

THIRTEENTH: That at all times hereinafter mentioned, Defendants, Police Officer, TRISTIAN LATIMORE and "JOHN DOE", while acting in their official capacity as a police officers, detained, arrested and filed untrue and baseless arrest report alleging that there was an outstanding arrest warrant against Plaintiff.

FOURTEENTH: That at all times hereinafter mentioned, Defendant, CITY OF NEW YORK failed to properly train its employees, recognize and take steps to correct deficiencies in police procedures which led to Plaintiff's wrongful search, arrest and detention, despite being repeatedly advised of the lack of any evidence whatsoever or probable cause by review of video surveillance.

FIFTEENTH: That as a result of negligence, carelessness and recklessness of the Defendants, CITY OF NEW YORK, POLICE OFFICER TRISTIAN LATIMORE and "JOHN DOE", Plaintiff, SAYSHA SEGUNDO, was wrongly detained, imprisoned and forced to undergo fear and humiliation.

SIXTEENTH: That as a result of negligence, carelessness and recklessness of the Defendants, CITY OF NEW YORK, POLICE OFFICER TRISTIAN LATIMORE and "JOHN DOE", Plaintiff, SAYSHA SEGUNDO, was denied immediate and proper medical treatment which resulted in her injuries becoming more severe and permanent, including infections which have led to partial loss of vision.

SEVENTEENTH: That had Defendants provided and permitted proper and immediate medical treatment to be rendered to Plaintiff, SAYSHA SEGUNDO, she would not have suffered permanent partial loss of vision.

EIGHTEENTH: That the Defendant, THE CITY OF NEW YORK, was negligent, careless and reckless in the hiring, training, and supervising of its employees, servants, agents so as to cause Plaintiff, SAYSHA SEGUNDO, to sustain the severe, serious and permanent injuries as hereinafter alleged.

NINETEENTH: That the occurrence and the injuries sustained by the Plaintiff, SAYSHA SEGUNDO, were caused solely by the negligence of the Defendants, THE CITY OF

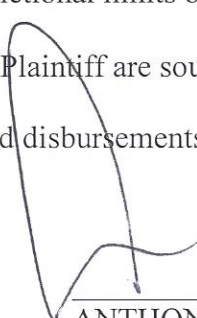
NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and OFFICER TRISTIAN LATIMORE “JOHN DOE”, their agents, servants, and/or employees, without any negligence on the part of the Plaintiff contributing thereto.

TWENTYETH: That solely by reason of the recklessness and carelessness of the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and OFFICER TRISTIAN LATIMORE and “JOHN DOE ”, as aforesaid, the Plaintiff, SAYSHA SEGUNDO, became sick, depressed and disabled, received serious, permanent and severe psychological and physical injuries; Plaintiff continues to suffer from said injuries; that said Plaintiff has been informed and verily believe said injuries to be of a permanent nature and the Plaintiff is and will be incapacitated for a long period of time and Plaintiff, and further, Plaintiff was forced to expend considerable sums of money to provide his defense for the wrongful charges brought against him.

TWENTYFIRST: That all of the aforesaid false and baseless charges filed against Plaintiff, SAYSHA SEGUNDO, by defendants herein where subsequently dismissed on the merits in a court of law.

WHEREFORE, Plaintiff, SAYSHA SEGUNDO demands judgment against the Defendants. Damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction. Damages for the Plaintiff are sought in an amount to be determined upon trial of this matter, together with costs and disbursements.

Dated: New York, New York
September 22, 2015



ANTHONY IADEVAIA

VERIFICATION

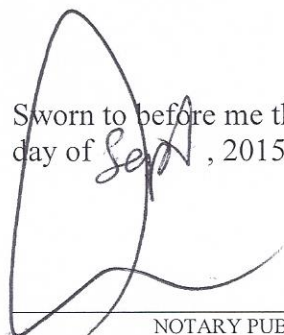
STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

SAYSHA SEGUNDO, being duly sworn, deposes and says:

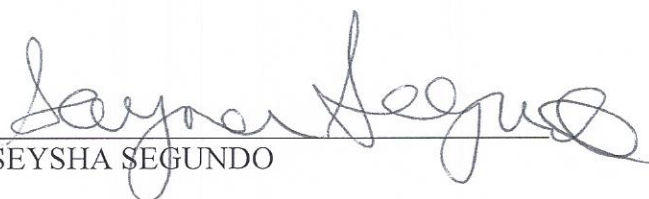
1. I am the Plaintiff/Petitioner/Claimant in the foregoing action.
2. I have read the foregoing COMPLAINT and know the contents thereof. It

is true to my knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

Sworn to before me this
day of Sept, 2015.

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NOTARY PUBLIC



SEYSHA SEGUNDO

ANTHONY IADEVAIA
Notary Public, State of New York
No. 02/A5006212
Qualified in New York County
Commission Expires Feb. 16, 2019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

=====X Index No.:
SAYSHA SEGUNDO,

Plaintiff,

-against

CITY OF NEW YORK, POLICE OFFICER TRITIAN
LATIMORE and POLICE OFFICERS "JOHN DOE"

Defendantss.

=====X

SUMMONS & VERIFIED COMPLAINT

THE LAW OFFICES OF ANTHONY IADEVAIA

Attorneys for Plaintiff(s)

1932 Second Avenue
New York, New York 10029
(212) 996-8700

To:

Service of a copy of the within
is hereby admitted.

Attorney for

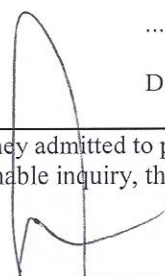
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Dated:.....201..

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice law in the court of the State of New York, certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: September 22, 2015

By:



Anthony Iadevaia, Esq.